

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 3**

24-CIV-01937

ONELINK, LLC VS. JOHN B. STONE, JR, ET AL.

ONELINK, LLC
JOHN B. STONE

CATHERINE DELCIN
DAVID H. SCHWARTZ

Plaintiff's Motion to be Relieved as Counsel

TENTATIVE RULING:

OneLink, LLC and Catherine Delcin are **ORDERED TO APPEAR**.

The unopposed motion of Catherine Delcin and Delcin Consulting Group to be relieved as counsel of record for plaintiff Onelink, LLC is **DENIED without prejudice**. While the Delcin declaration states that plaintiff's service address was confirmed as current, it does not indicate that this was the electronic service address. Paragraph 3(a) of the declaration is blank. In addition, the proof of service indicates the moving papers were served by email on March 3, 2026, the same date they were filed. However, the hearing date on the notice of motion was changed from July 8, 2026, to July 22, 2026, at the time of filing. As a result, it is unclear whether the copy of the notice served was the original or amended version. To date, the court's record does not reflect the filing or service of an amended notice.

If, however, counsel appears and provides proof that plaintiff's electronic address is current and that all parties had notice of the correct hearing date, the motion will be **GRANTED**. The Delcin declaration states grounds for withdrawal, no trial date has been set, and there are no other pending hearings.

OneLink is advised that if the court grants Ms. Delcin's motion to withdraw as counsel, it will have thirty (30) days to retain new counsel.

02:00 PM **LINE 4**

24-CIV-05754

CHRISTINE A. HALL, ET AL. VS. SHUJUAN WU, ET AL.

CHRISTINE A. HALL
SHUJUAN WU

JEFFREY R. WINDSOR
RUOCHEN LIU

Defendants Shujuan Wu and Huanhua Li's Motion for Leave to File an Amended Answer to Plaintiffs' Complaint

TENTATIVE RULING:

Defendants Shujuan Wu's and Huanhu Li's unopposed motion for leave to file an amended answer to the complaint filed by plaintiffs Christine A. and Francis C. Hall on September 16, 2024, is **GRANTED**.

Defendants shall file their amended answer within ten (10) days of notice of entry of the formal order.

A. Background

Plaintiffs brought their complaint on September 16, 2024. Defendants filed their answer on November 18, 2024, and a cross-complaint on November 25, 2024.

Defendants bring the instant motion to amend their answer pursuant to Code of Civil Procedure, section 473 on the basis of allegedly newly discovered facts and evidence which defendants contend impact the viability of plaintiff's title as well as generally in the interests of justice. Defendants submit a copy of the proposed amended answer appended to the instant motion as Exhibit 1. The motion is unopposed.

In future, the court directs the parties to submit any proposed amended pleading by way of a redlined version of the proposed revisions, rather than as a narrative included in a declaration of counsel.

B. Legal Standard

Code of Civil Procedure, section 473 permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. "Ordinarily, courts should 'exercise liberality' in permitting amendments at any stage of the proceeding. [Citations omitted.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense. (Citations omitted)." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Furthermore, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576, see also *Eng v. Brown* (2018) 21 Cal.App.5th 675, 700.) "The rule is that courts will be
